ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	4th Commission Meeting
DATE:	1 December, 2020
TIME:	02:00 PM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1	Review revised ToR for the Commission - PPS	Adopted the Terms of Reference of the Commission and decided the attached ToR shall be a living document. This is a revised/updated version of the Commission's ToR adopted in March 2019 and the Rules of Procedures for Commission Meeting adopted in April 2009. In principle, the Commission endorsed the following schedule for regular Commission meeting: a) Investigation & Prosecutorial Matters – Every Monday morning; b) Policy & Strategic Matters – Every Tuesday afternoon; c) Legal Matters – Every Wednesday morning; and d) Complaints Management – Every Thursday afternoon.
2	Review the plan to initiate 2nd Review Cycle of UNCAC - LD	The Commission endorsed the tentative action plan to undertake the second review cycle of UNCAC that will assess Chapter II: Preventive Measures and Chapter V: Asset Recovery of the Convention.
3	Any other: - Discuss on ACC's input for the HPM's State of the Nation's Report. - Proposal to conduct a Media Conference.	Decided to submit ACC's major updates (not covered in the Annual Report 2019) and the public perception revealed by various studies/reports on government's performance in controlling corruption. Decided to coordinate a Media Conference to correct the wrong perceptions related to investigative powers like freeze & seizure of properties, and arrest & detentions, among others. The Commission also decided to sensitize on the ACC's draft Media and Communication Policy & Guidelines. Decided to convene the meeting tentatively on 14th December 2020 or thereabouts.

— leave —
Commissioner

Commissioner

Chairperson

Terms of Reference (ToR) for the Commission

1. Background

To facilitate the Commission in effectively discharging its mandate, Terms of Reference (ToR) for the Commission is developed in reference to the Rules of Procedures for Commission Meeting adopted in April 2009 and ToR for the Commission adopted in March 2019.

The objective of this revised ToR is to:

i) establish general framework to facilitate the Commission in carrying out its responsibilities;

ii) establish general Rules of Procedure for the Commission meetings; and

iii) facilitate onboarding of the Commission on new appointments.

2. Legal Framework

In accordance with Article 27 (1) of the Constitution of the Kingdom of Bhutan, the Anti-Corruption Commission (ACC), headed by a Chairperson and two members of the Commission, is an independent authority and take necessary steps to prevent and combat corruption in the Kingdom. Further, in line with Article 27 (6) of the Constitution, the ACC is guided by the Anti-Corruption Act of Bhutan (ACAB) 2011.

Chapter 2 of ACAB 2011 provides the following legal requirements:

i) Section 6 guarantees an operational independence to the Commission.

ii) Section 6 (3) provides that the powers or functions of the Commission are exercisable by a Member and an act done in the name of the Commission or on its behalf by the Member is deemed to have been done by the Commission.

iii) Section 16 and 17 requires the Commission to foster transparency and accountability and promote participatory decision-making.

iv) Section 17 (1) requires the Commission to determine procedures for its meetings.

v) Section 23 specifically defines the responsibilities of the Chairperson as the Head of the Agency.

vi) Section 23 (2) (g) provides that the Chairperson can assign the affairs of the Commission to the Members based on the relevancy and competence of the Member/s.

vii) Section 24 & 25 prescribes the mandates and powers of the Commission.

3. Responsibilities of the Commission members with specific portfolio

i) The Chairperson shall execute other functions required to be performed by the Head of the Agency under the relevant law/rules & regulations such as Bhutan Civil Service Rules & Regulations, Financial Rules & Regulations, Procurement Rules & Regulations, etc.

ii) The Chairperson may assign the two Members as Commissioner In-charge of respective Departments/Divisions/Services as per Clause 3 (vi) above.

iii) As Commissioner In-charge, they shall be responsible for oversight functions of the Departments/Divisions/Services assigned to them.

iv) The functioning of the Departments/Divisions/Services shall be guided by the respective **Policies and Procedures, Manuals/Guidelines and SoPs**.

v) The Commissioner In-charge shall be accountable to (or report to) the Chairperson.

vi) The respective Director/Head of Departments/Divisions/Services shall report to the Commissioner In-charge.

vii) The Commissioner In-charge shall have authority to decide on the issue emanating from the assigned Departments/Divisions/Services to the extent it is not repugnant or derogatory with the lawful requirement or the existing policies.

viii) The Commissioner In-charge shall not make policy decision or take decision which requires collective decision of the Commission under the Act or other relevant law.

ix) The Commissioner In-charge may call for Commission meeting if he or she deem necessary to have full quorum of the Commission to decide on a matter.

x) Meetings of the Commission for collective decision-making shall be held as per the **'Rules of Procedure for Commission Meeting'** as per Clause 5 below.

xi) The two Members may also be assigned to take charge of implementing International Instruments or such other responsibility, and shall have authority to oversee, control and decide on the issue emanating from that responsibility.

4. Rules of Procedure for Commission Meetings

4.1. Commission Meetings and procedures

A. Investigation and Prosecutorial Matters

i. Decide on the use of coercive investigative powers.

ii. Control and affect changes in the scope, if material, of the case.

iii. Decide on the outcome of investigations recommended by the IRC – prosecution referrals, disciplinary referrals, systemic recommendations and closure of case.

iv. The meeting shall be conducted weekly. It may also be conducted on an ad hoc basis on exigent circumstances.

v. The meeting shall be attended by the following, as observers.

a) Director, Department of Prevention & Education (DoPE);

b) Director/Head of Follow-up & Documentation Division, Department of Professional Support (DoPS);

c) Director, Department of Investigation (DoI),

d) Head, Legal Division (Legal Advisor); and

e) Information & Media Officer, Secretariat Services.

vi. The meeting shall be coordinated by Director, DoI, who shall be the Member Secretary to facilitate the meeting, while the investigation team presenting the case shall prepare minutes and follow-up on the decisions.

B. Policy & Strategic Matters

i. Formulate/approve policies of strategic importance on combating corruption, human resources and organizational needs.

ii. Formulate/approve policies on work plans, programs and activities.

iii. The meeting shall be convened weekly and also on ad hoc basis, depending on availability of agenda for review and discussion.

iv. Head of Policy and Planning Services (PPS) shall coordinate the meeting and also be the Member Secretary to prepare agenda, facilitate the meeting, prepare minutes, and follow-up on the decisions.

v. The meeting shall be attended by Head and officer/s concerned from Departments/Divisions/Services apprising/presenting the agenda item.

C. Legal Matters

i. Review and decide way forward on court judgments, as and when required.

ii. The meeting shall be convened weekly and also on ad hoc basis, depending on need.

iii. Head of Legal Division shall coordinate the meeting and also be the Member Secretary to prepare agenda, facilitate the meeting, prepare minutes, and follow-up on the decisions (example judgment review & debriefing form).

iv. The meeting shall be attended by Head/s of Departments/Divisions concerned, depending on the matter of discussion.

D. Complaints Management:

i. Decide on the evaluated complaints to investigate, conduct Information Enrichment, share with agencies for administrative actions and/or sensitization, or to drop.

ii. Review and decide on the Action Taken Reports from the agencies and findings of Information Enrichment.

iii. The meeting shall be convened at least once in a week (every Thursday afternoon).

iv. The meeting shall be attended by the Director of DoPS and official/s apprising complaints, Information Enrichment and Action Taken Reports. Director of DoPS shall be the Member Secretary.

4.2. Specific guidelines for the Commission meetings

1. The Commission meeting shall not be limited to above-mentioned meetings. Any Department/Division/Service may request for a meeting on their issues/proposal requiring the attention of the Commission, at least one day in advance.
2. Notwithstanding regularity of the above meetings and its observers, the Commission may convene such meetings as and when required and invite relevant officials of the ACC.
3. The meeting/s shall be chaired by the Chairperson, ACC.

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4. In the absence of the Chairperson, the senior most Commissioner shall chair the meetings.
5. The Commission meetings shall not be convened unless a two- third quorum is met.
6. The Commission members shall declare conflicts of interest for meetings related to complaints and cases.
7. The Commission shall make decisions, as far as possible, by consensus. If there is no consensus, views of the majority shall be considered as the decision of Commission.
8. In case of dissenting views, such views shall be recorded with ownership; the Commission member opposing the decision of the majority shall have right not to sign the minutes.
9. The observers shall not have voting rights for decision.
10. The recorded decision shall be put up for signature of the Commission members, where applicable, within three working days after the meeting.
11. The recorded and signed decision shall be filed in appropriate files or managed by the PPS for follow-up on the decisions or appraising officer for action as required.
12. Confidentiality of information/decisions of such meetings shall be strictly maintained, as required by the nature of the decision/made explicitly in the meeting.

NOTE:

The Commission ToR is not intended as binding legal obligations or inflexible requirements, and are not intended to interpret applicable laws or regulations or modify the provisions of the Act.

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